IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-512
CP (CAA) No. 144/230/232/ND/2019

IN THE MATTER OF:
Itron Metering Solutions India Pvt Ltd and Itron India Pvt Ltd ....**Applicant**

SECTION
U/s 230-232

Order delivered on 29.07.2021

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI K.K. VOHRA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Advs. Gyanendra Kumar, Ms. Shikha Tandon and Mr. Robin Grover,
For the Respondent : Adv. Easha Kadian alongwith Himanshu

ORDER

In course of hearing, we notice that though the RD (Regional Director) in his report has not raised any objection but by filing a report, Income Tax Department has referred some outstanding demands in Para 6 of the report and copy of the same is quoted below:-

M/s Itron Metering Solutions Pvt Ltd.

A.Y.	Amount (Rs.)
2002-03	1,17,59,109
2006-07	1,86,58,694
2009-10	52,858,
2015-16	80,800
Total	**3,05,51,461/-**

M/s Itron India Pvt. Ltd.

A.Y.	Amount (Rs.)

2015-16	66
2018-19	97,56,090
Total	**97,56,156**

Therefore, we think it proper to give direction to the Income Tax Department to submit a fresh report stating whether department has objection on the scheme or not?. Let the same be filed within one week from today.

In course of hearing, we also notice that the petitioner has not submitted the audited report for the year F.Y .2018-19 & 2019-20 and further, the petitioner is also directed to submit clear copy of the publication etc.. Petitioner is directed to file the same within one week.

List the matter on **13.08.2021.**

-Sd/-

(K.K. VOHRA)
MEMBER (T)

-Sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

Chirag